

19TRCV00781 19TRCV00781

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-09

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Case Number: 19TRCV00781 Hearing Date: September 9, 2026 Dept: B

Superior

Court of California

County

of Los Angeles

Southwest

District

Torrance

Dept. B

YBANAG

REALTY & DEVELOPMENT CORPORATION,

Plaintiff,

Case No.:

19TRCV00781

vs.

[Tentative]

RULING

THE

SALVATION ARMY,

Defendant.

Hearing

Date: September 9,
2026

Moving Parties: Attorney Orlando F.
Cabanday, plaintiff's counsel

Responding Party: None

Motion to Be Relieved
as Counsel

The Court
considered the moving papers.

RULING

The
motion is DENIED WITHOUT PREJUDICE.
There is no proof of service of the motion.

BACKGROUND

On September
6, 2019, Ybanag Realty & Development Corporation filed a complaint against The
Salvation Army for (1) breach of contract, (2) open book account, (3) account
stated, (4) enforcement of mechanics lien, and (5) prompt payment penalties.

On
January 8, 2020, the parties stipulated to stay the case pending arbitration.

On
January 25, 2022, plaintiff filed a substitution of attorney.

On
February 4, 2022, defendant filed a substitution of attorney.

On

July 20, 2026, the Court denied plaintiff's counsel's motion to be relieved as counsel without prejudice.

LEGAL

STANDARD

The

court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client and it does not disrupt the orderly process of justice.

See *Ramirez v. Sturdevant*

(1994) 21 Cal. App. 4th 904, 915; *People*

v. Prince (1968) 268 Cal. App. 2d 398.

CRC

Rule 3.1362 (Motion to Be Relieved as Counsel) requires (1) notice of motion and motion to be directed to the client (made on the Notice of Motion and Motion to be Relieved as Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052)); (3) service of the notice of motion and motion and declaration on all other parties who have appeared in the case; and (4) the proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)).

DISCUSSION

Plaintiff's attorney, Orlando F. Cabanday, seeks to be relieved as counsel of Ybanag Realty & Development Corporation dba D'Ybanag Construction Company.

Counsel states in his declaration that there has been an irreparable breakdown in the attorney-client relationship such that continued representation is not reasonably possible.

Counsel states that he has confirmed the client's last known address by going to the address listed within the past thirty days.

The Court

finds that the attorney submitted a declaration establishing that the service requirements of California Rules of Court, Rule 3.1362, have been satisfied in that they confirmed the client's address by personally visiting the client's place of business. The Court also finds that the attorney has shown sufficient reason why the motion to be relieved as counsel should be granted.

There

is no proof of service of the motion.

The motion is DENIED WITHOUT PREJUDICE.

ORDER

The

motion is DENIED WITHOUT PREJUDICE.

Moving

counsel is ordered to give notice of this ruling.